

Court No. - 39

Case :- WRIT - C No. - 28202 of 2022

Petitioner :- Mukhtar Washeem

Respondent :- Uttar Pradesh Power Corporation Limited

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Krishna Agarawal, Mukesh Kumar Singh

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

Heard Sri Sandeep Kumar, learned counsel for the petitioner, Sri Mukesh Kumar Singh, learned counsel appearing on behalf of respondents and perused the record.

The petitioner herein seeks to challenge the demand notice issued by the respondents that the computation made by them is illegal. Learned counsel for the petitioner further submits that the order of disconnection of electricity passed by the respondents is illegal, inasmuch as, they cannot realize the electricity dues after certain period i.e. in accordance with the provisions of Section 56(2) of the Electricity Act, 2003 read with Clause 6.5 of Electricity Supply Code, 2005.

All the arguments can be made by the petitioner, in case, an appeal is filed before the competent authority challenging the computation made by the assessing authority.

Thus, the petitioner herein has a remedy to file appeal under section 127 of the Electricity Act before the appropriate forum.

The writ petition is **dismissed**, accordingly

Order Date :- 23.9.2022

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